

not constitute a disclaimer. Petitioners' contention that Patrick's share will pass to "the remaining four (4) siblings" is irreconcilable with the allegations that decedent was survived by 6 siblings, only one of whom post-deceased.

7. S-PR-0012581 In Re the Estate of Walling, Jay Brian

Petition for final distribution

Appearance is required for hearing on petition for final distribution.

Missing notice of hearing. Missing service of notice of hearing.

Petition for final distribution is substantially overdue without justification. The estate real property sold in September 2024 and the report and account do not show any substantive administration thereafter. The first report or petition for final distribution was due July 2025. Prob.C. § 12200(a) (letters were issued July 2024). Court determination is needed as to whether personal representative and / or attorney fees should be reduced under Prob.C. § 12205.

The estate is not in a condition to be closed. Administrator acknowledges the claim of Ryan Walling remains outstanding, never having been approved or rejected. If rejected in any part, claimant will have the statutory period to bring an action against the estate. In both this petition and the companion petition, administrator proposes rejecting the claim in part. Additional calendar notes concerning the Ryan Walling creditor claim are provided with the petition for instructions, below.

Proposed administrator and attorney fees were miscalculated in two ways. First, the estate inventory and appraisal impermissibly included surviving spouse's 1/2 community interest in certain assets. Only decedent's 1/2 community interest is part of this estate and can be administered herein. The I&A failed to exclude survivor's 1/2 from the I&A valuation total, and petitioner used the inflated total for both fees calculations and for account carry values. Second, the fee base is to include additional property received, gains on sale, and receipts. See Prob.C. §§ 10800(b) & 10810(b); C.R.C. 7.705. Recalculation of personal representative and attorney fees or waiver of unclaimed fees is needed.

Notes concerning the request to surcharge Craig Walling's distributive share are provided with the petition for instructions, below.

For the benefit of counsel for administrator, it is noted that R&T § 19513, referred to in ¶ 12 of the petition, was repealed more than 12 years ago (effective January 1, 2014).

Petition for instructions re creditor claim and proposed surcharge

Appearance is required for hearing on petition for instructions re creditor claim and proposed surcharge.

Missing notice of hearing. Missing service of notice of hearing.

As a preliminary matter, it is noted that the creditor claim at issue was presented by Ryan Walling "as Trustee of the Walling Revocable Living Trust dated 6/9/93 as restated March 30, 2017." Administrator is required to address the claim as presented—by trustee—and not as though it had been presented by Ryan Walling individually. Any speculation concerning the source of funds Ryan Walling may have used to pay expenses itemized in the claim is immaterial to the claim itself. Any issues or claims that do or may exist between the said trust and Ryan Walling are outside the scope of decedent's estate administration and this petition.

It is recommended the petition for instructions be denied as unnecessary. Administrator seeks court approval of a plan to approve the subject creditor claim in part, despite arguing that the claim is wholly invalid. As noted above, the claim has not been approved or rejected and any rejection affords claimant the statutory period to bring an action against the estate. Administrator offers no legal authority establishing that a § 9611 petition for instructions may be used to determine the validity or invalidity of a creditor claim. Administrator has necessary powers to address the claim without court involvement. Prob.C. § 10552. Under these circumstances, instructions by the court appear to be unnecessary.

It is further recommended the request to surcharge Craig Walling's share with that portion of the creditor claim that the estate has volunteered to pay claimant be denied. Administrator impliedly concedes that the amounts the estate now volunteers to pay claimant did, in fact, benefit the estate, both by sparing the estate the utility, HOA, and mortgage costs which would have been claimed through escrow on sale of the property, and by removing the unauthorized occupant to free the property for sale. As claimed, the expenditures were *trust* expenses. Administrator argues at length these expenses not legally recoverable by trustee-claimant. Administrator has not shown how her plan for *voluntary* payment of trust expenditures by the estate must or should *obligate* Craig Walling to bear the entire burden of such voluntary expenditures. The cases cited by administrator do not stand for such a proposition.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.